



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAY 20 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12273

EXPIRATION DATE: **August 15, 1999**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Boeing Company
International Space Station Program (ISS),
Huntington Beach, California
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of certain non-DOT specification containers containing a Division 2.3 liquefied gas. This exemption provides no relief from any regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.34(d) in that containers are not fitted with pressure relief devices; §§ 173.302(a)(1) and 173.304(a)(2) in that non-DOT specification packagings are authorized.
5. BASIS: This emergency exemption is based on the application of Boeing Company dated May 11, 1999, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Ammonia, anhydrous, liquefied	2.3	UN1005	N/A

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are non-DOT specification containers described as heat pipes, variable conductance heat pipes, capillary pumped loops, and reservoirs. Containers must be in conformance with the requirements of DOT-E 11725 in all respects except for overpacking requirements. Containers are without valves or pressure relief devices. Containers must be packaged and installed as part of the SO Integrated Truss Segment as described in the Boeing Company application for exemption on file with the Office of Exemptions and Approvals.

b. OPERATIONAL CONTROLS -

(1) Transportation is authorized from the Boeing plant in Huntington Beach, California to Los Alamitos Air Field, Los Alamitos, California (a distance of approximately 10 miles).

(2) Highway transportation is authorized via NASA-owned flat bed trailer.

(3) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the receptacles are not fitted with pressure relief devices and provide appropriate guidance in case receptacles are exposed to fire.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. MARKING - The outer wrapping must be plainly and durably marked on two opposite sides "DOT-E 12273".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

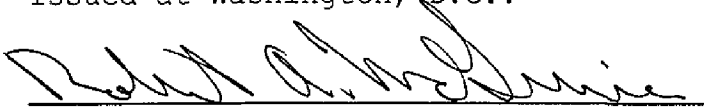
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: DHM-31.

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The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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